

21STCV44465 21STCV44465

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Case Number: 21STCV44465 Hearing Date: August 18, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

18, 2026 TRIAL

DATE: September 8, 2026

CASE: U.S. Bank National Association, As Trustee for Velocity Commercial Capital Loan Trust 2019-3 v. Sannette Gite, As Trustee of the Vaughn Family Trust, et al.

CASE NO.: 21STCV44465

DEFENDANTS

MATTHEW MARK AND CHARMAINE MARK AS TRUSTEES OF THE USRE TRUST'S EX PARTE
APPLICATION FOR AN ORDER DISSOLVING TEMPORARY RESTRAINING AND STAY ORDERS

MOVING PARTY: Defendants Charmaine Mark and Matthew Mark As Trustees of the USRE Trust

RESPONDING

PARTY: Defendant/Cross-Complainant Sannette

Gite

This case concerns ownership of,

title to, and loans against 8940 Kramerwood Place, Los Angeles, California

90034 (the "Property"). The Property has

been the subject of numerous conveyances and quiet title actions. In 1998, title

to the Property was transferred to the Vaughn Family Trust ("VFT"). In 2011, defendant and cross-complainant Sannette

Gite ("Gite") was named as trustee of the VFT. In 2021, a deed of trust was recorded with Gite, as trustee of the VFT as trustor, and USRE Trust as beneficiary. In this consolidated action, Gite, plaintiffs and cross-defendants U.S. Bank National Association, as trustee for Velocity Commercial Capital Loan Trust 2019-3 ("U.S. Bank"), and Mara Enterprises ("Mara") each allege an ownership interest in the Property. U.S. Bank and Mara filed separate actions against Gite, in her capacity as Trustee of the Vaughn Family Trust, and Matthew Mark and Charmaine Mark as trustees of the USRE Trust (the "Marks" or "USRE TRUST"), to quiet title to the Property. Gite filed a cross-complaint against U.S. Bank, Mara, Velocity Commercial Capital LLC, and the Marks.

I. BACKGROUND

U.S.

Bank's Ex Parte Application for Temporary Restraining Order

On January

11, 2024, U.S. Bank filed an ex parte application for a temporary restraining order ("TRO") to enjoin and retrain the Marks from foreclosing on the Property.

At the time of ex parte application, the

Marks had noticed a foreclosure sale of the Property for January 19, 2024.

On January

17, 2024, the court granted the ex parte application.

On January 18, 2024, the court issued a TRO enjoining and

restraining the Marks from proceeding with and/or completing any foreclosure sale of the Property. The court also

issued a hearing on preliminary injunction to take place at the time of trial. The hearing on a preliminary injunction has since consistently trailed with, and been continued with, the trial date in this action.

Gite's

Ex Parte Application for a Stay of Foreclosure Sale

On January

16, 2024, Gite brought an ex parte application to stay execution of default of deed of trust. Gite also sought an order

from the court prohibiting the Marks from foreclosing on the Property because should could not cure the default until clearing title.

On February

1, 2024, the court signed an order in connection to Gite's ex parte application staying the foreclosure on the Property pending a further order of court.

Settlement,

Dismissal, and Recordation of Reconveyances

On April 3,

2026, Gite, U.S. Bank, Mara, Velocity, and the title insurer for the Marks entered into a settlement agreement resolving the various quiet title claims.

On May 7,

2026, the court entered the parties' stipulated judgment which quieted title to the Property in Gite's name and dismissed the quiet title claims.

On June 11

and 26, 2026, U.S. Bank and Mara each recorded a full reconveyance of trust. As such, the Property is indisputable owned by Gite subject only to the Marks Deed of Trust. There are no pending claims against the Marks.

Marks'

Ex Parte Application to Dissolve TROs

On July 7, 2026, the Marks filed this ex parte application to dissolve the TROs.

On July 9,

2026, Gite filed an opposition.

On July 21,

2026, the court granted in part the ex parte application and set a hearing date for August 18, 2026. The court deemed Marks' ex parte application and Gite's opposition as the moving papers and opposition, respectively. The Marks were given leave to file a reply.

On August

7, 2026, the Marks filed timely a reply.

II. LEGAL STANDARD

“In any action, the court may on notice modify or dissolve an injunction or temporary restraining order upon a showing that there has been a material change in the facts upon which the injunction or temporary restraining order was granted, that the law upon which the injunction or temporary restraining order was granted has changed, or that the ends of justice would be served by the modification or dissolution of the injunction or temporary restraining order.” (Code Civ. Proc., § 533.) Dissolution of a temporary restraining order rests in the sound discretion of the trial court. (Union Interchange, Inc. v. Savage (1959) 52 Cal.2d 601, 606.) The party seeking dissolution has the burden of proving that the request is justified. (See Loeffler v. Medina (2009) 174 Cal.App.4th 1495, 1504.)

III. DISCUSSION

The court will dissolve the U.S. Bank TRO and Gite TRO. The facts upon which the TROs were granted have drastically changed. As recounted above, Gite has cleared title on the Property in her favor. U.S. Bank and Mara have recorded full reconveyances. There are no remaining quiet title claims on the Property. The grounds supporting each TRO are no longer present.

Gite offers little in way of opposition. Gite argues the court should maintain the status quo given that not all Gite's claims have been resolved, trial is less than a month away, and Gite needs more time to obtain financing. The court is not persuaded. Gite fails to acknowledge the changed factual circumstances. Rather, perhaps unwittingly, Gite reveals the real reason for maintaining, at minimum, the Gite TRO: more time to cure the default. This was not the basis upon which Gite requested the TRO nor does it support maintaining the Gite TRO. Moreover, the Marks provide more than ample evidence to establish they would be irreparably

harmful if the Gite TRO is not dissolved.

IV. CONCLUSION

The application is GRANTED.

The TROs, issued on January 18, 2024 and February 1, 2024 are DISSOLVED.

Moving

party to give notice, unless waived.

Dated: August 18,
2026

Brock T. Hammond

Judge of the
Superior Court